11/15/2023 - Brooklyn Union & KeySpan Gas - 23-G-0225/0226

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

PUBLIC STATEMENT HEARING

DATE: November 15, 2023 at 6:09 p.m.

LOCATION: Theodore Roosevelt Executive and Legislative Building
1550 Franklin Avenue
Mineola, New York 11501

BEFORE: ALJ MAUREEN F. LEARY

Reported by Danielle Christian

(The hearing commenced at 6:09 p.m.)

THE REPORTER: On the record.

A.L.J. LEARY: Okay. I call Case 23-G-0225, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of the Brooklyn Union Gas Company doing business as National Grid New York for Gas Service. And case 23-G-0226, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation doing business as National Grid also for Gas Service. Good evening, everyone. My name is Maureen Leary. I'm an Administrative Law Judge with the Department of Public Service, and I'm honored to be joined this evening with our chairman, Rory Christian, who attends many of these. And Chair Christian, can I impose on you to address the group?

MR. CHRISTIAN: Thank you, Judge. Good evening, everyone. My pleasure to be here tonight, and I want to express my thanks and an appreciation for everybody that came out. I know there are many things we would like to be doing tonight, and your presence here shows me how important this particular issue is to you. We're here to listen. We're here to take this as part of

the record, and as I'm sure many of you know the Commission's actions are based on information that is made part of the record. So in making your voice heard tonight, you become a part of how we determine subsequent actions related to this case. So again, thank you for coming tonight. I look forward to a healthy and professional discourse, and thank you again for your time.

A.L.J. LEARY: Thank you, Chair Christian. So we're going to do two things this evening. The first thing we're going to do is to have an information session. And the woman to my right, we are on the record, Ms. Christian will be transcribing both the information session as well as the Public Statement Hearing, which will immediately follow the information session. So Mr. Decicco, are you ready to proceed? Thank you.

MR. DECICCO: So thank you, Chair Christian. Thank you, Judge Leary. My name is Phil Decicco. I'm from National Grid, and I want to, again, thank everyone and welcome to the Public Statement Hearing. And -- and I want to echo the Chair's appreciation in the level of interest and engagement in these rate filings. These are

important matters, and so we absolutely appreciate the public's discourse and feedback that will in fact shape this case. As I said at the beginning of this process, National Grid is very committed to a thorough and transparent rate filing. We will begin today's session by providing a brief overview of our case before turning it over to public comment. This rate case is about updating the delivery rates that we charge our customers and -- and the ways in which we provide service.

When we filed our case back in April, it was supported by thousands of pages of testimony and exhibits from our expert witnesses. We have since been engaged in months of discovery, answering questions about -- about 1,500 questions about every aspect of our cost of providing services to customers here on Long Island, and -- and as well as the programs and the benefits that we're looking to deliver. In September, the Department of Public Service staff and intervening parties representing a wide array of interests filed responses to our case. We recently commenced settlement negotiations with the goal of reaching a multi-year rate settlement that will, among other things, help us to smooth some

of the rate impacts that we're talking about today and deliver other important benefits to our customers.

These Public Statement Hearings are an important part of the process in that they will absolutely shape ultimately our -- our rate settlement to our rate case outcome. And again, your feedback is appreciated and will be in the record as -- as the Chair described. Before we talk about our current rate filings, I thought it'd be helpful just to provide a little bit of context about where we've been over the last three years. And you'll recall that our current rate plans were enacted or were -- excuse me, were approved shortly after the enactment of the CLCPA New York's landmark climate legislation and were effectively negotiated in the midst of the pandemic. So what that meant was we had to go to great lengths to find every way in which we could reasonably moderate customers' bills, bills -- bills of customers who were suffering from the health and financial impacts of the pandemic here on Long Island.

So we were able to, through coordination and work with the parties in that rate

case, develop a rate plan that had moderate bill impacts, including zero rate freeze in the first year, but still allowed us to deliver on some really important benefits thing and programs, things that are important to our customers. So yes, we've been able to invest in our infrastructure and make sure that our system is both safe and reliable. At the same time, we've really been able to deploy non-infrastructure solutions. So our customers last year were able to save two times the amount of energy eff -- amount of energy through energy efficiency programs that they were just two years ago.

We've enrolled about 20,000 customers in -- in our Smart Thermostat program. That's a tenfold increase from just 2020. We've reduced system emissions, very important and aligns with the CLCPA goals through our main replacement program, as well as our leak repairs. And our numbers have come down considerably in just the last several years. We have consistently met or exceeded our customer service quality and our safety metrics. At the end of the day, that's really measuring how it is we provide our core service. Importantly, we provided more than a 100 million -- a hundred and fifty

million, excuse -- excuse me, of savings to customers who were impacted by COVID, including many customers who found themselves unable to pay their utility bills for the first time.

And importantly, we have really doubled down on our commitment to communities in New York City and here on Long Island through Project C, a program focused on workforce development, environmental justice, neighborhood investment, and volunteerism. But our current rate plans have come to an end, and so we are obligated to file to update those rates, and that's really what that case is -- this case is about. That's what brings us here today. In developing our rate case filings, we focused on three priorities. Our first priority, as it must be, is to continue to meet our core obligation to deliver energy to our nearly 2 million customers in New York City and Long Island -- on Long Island.

Our customers rely on us to heat their homes on the coldest days of the year. They rely on us to cook their food, and so our -- our energy must be there to meet their needs on those days. To that end, we proposed a package of investments that we

will target infrastructure upgrades in -- in a way that we think is reasonable and meets our safety mandates, which is critically important. Now, our -- these days are our portfolio of -- of investments that are just targeted in meeting safety mandates and -- and other mandated programs consist of about 70 percent of our capital portfolio. So the -- the vast majority of our investments are mandated work -- work we have to do.

As I mentioned before, our investments also reduce system emissions, which is critically important. We are reducing and have considerably reduced since our -- our -- our peak just a few years ago, our leak backlog and would anticipate that will continue to come down during the course of this rate plan. Weather events, such as Superstorm Sandy in 2012, the polar vortex in 2014, and Winter Storm Elliot, just last December, and the expectation that these kind of severe weather events will happen with increasing frequency going forward. Really highlight the need for investment in what we call resiliency projects. Projects to maintain essential service to those severe weather events.

Since our last rate case, the

Commission has said that stable and reliable energy networks are critical to and the foundation of the CLCPA, and so we are going to be ready to meet that challenge. Indeed, our second priority in this rate case is supporting clean energy transition and advancing the state's energy goal, which guide our approach really in every aspect of this filing. Now, for our system, it's about, again, reducing emissions and advancing non-pipe solutions. For our customers, we're promoting more energy efficiency and electrification options and prioritizing programs in disadvantaged communities. Our third priority is enabling customer affordability.

Now, I'll say right out of the box. I appreciate the challenge of talking about rate increases on the one hand and -- and affordability. So it's incumbent upon us to demonstrate that the rates we're asking for are updated rates, are supported by evidence, demonstrating our cost of service, and also demonstrating that we've looked at every opportunity to help reduce those rates and help to offset them with efficiencies and other programs. And I'll -- and I'll talk about that in a moment. It's also critically important that we're doing

everything we can to support our customers who are at least able to pay our bills.

So one of the important components of our -- our rate filing, again, I'll talk about in a (unintelligible) is our programs for our low-income customers. Critically important that we are focusing on making sure those customers least able to pay have support when it comes to paying for essential energy services. So I talked about aligning our rate case with the CLCPA. As I mentioned, our case was -- was settled last time, just after the CLCPA was enacted. There was really not a lot of guidance in terms of what it meant to -- to operate a -- a gas company under the CLCPA. We've since had several Commission orders. We have the Climate Action Council and the Scoping Plan. We have the -- the All-Electric Building Act. All of those things help to give us a bit of a mandate when it comes to running our business here in 2023.

But even in that rest -- last rate plan, we were able to put together a set of packages that ultimately allowed the Commission to determine that our case was directionally consistent with the goals of the CLCPA. And I'm pleased to say that

we've delivered on those commitments. We targeted and achieved reductions in overall gas usage as compared to our forecasts. We funded more than a hundred and thirty million dollars of energy efficiency programs and more than sixty million dollars of demand response programs. Now, just those demand response programs have allowed us to reduce the peak usage on our system about 150,000 customers. That's -- that's -- that's infrastructure that we don't need to build in order to serve those customers on -- on the peak days.

This is a good example of us trying to find non-pipes alternatives, not just putting pipe in the ground, but finding ways to serve customers through alternative means. And demand response is one of the tools in our tool belt. We've ceased -- ceased marketing gas activities and -- and related incentive programs, and we are instead promoting non gas alternatives. So that means if a customer comes to us these days, we're not just signing them up for gas service, we're telling them about their heat pump and -- and other electrification options pointing them to their programs at our colleagues in the electric business and -- and trying to find

opportunities for them to -- to -- to consider their full range of options when it comes to heating their homes.

In this case, we are pulling forward all of those initiatives. That's where we're starting from, and we're going to -- and we're going to build on them. You know, continuing for instance for -- for targeting electrification even to greater degrees, trying to bring down gas usage -- usage even more aggressively than we did in this last case. Increasing our energy efficiency programs and demand response programs. And especially in this case, focusing on customers in disadvantaged communities, which is a critical part of the CLCPA.

The core pillar of our approach to the energy transition is -- is energy efficiency. It just simply enables our customers to use less energy. Not only is that more sustainable, but obviously it helps them from an affordability standpoint in terms of managing their -- their gas bills. We are proposing to fund more than seventy million dollars of energy efficiency and weatherization in this case. We are proposing new pilots that are aimed at removing participation barriers in low and moderate-

income customers. And that's a customer segment that traditionally has not taken as much advantage of our energy efficiency programs. So among other things, we're proposing a weatherization health and safety program.

Now, what this will do is go to customer -- low-income customers homes and actually make home repairs for them repairs that -- that would've prevented them from otherwise weathering their home, whether it's upgrading their electric systems or removing asbestos or fixing their roofs. That has been a barrier to some of our customers taking advantage of these weatherization programs. We think it's a great pro -- program that we piloted and we now want to expand. Language access. So providing more information, especially to Spanish speaking customers, on the available programs, just to help get more of our customers in that segment enrolled in energy efficiency. And finally, again, focusing particular programs on our disadvantaged communities in our service territory.

Customer programs. So to promote affordability and improve our customer experience, we're increasing funding for what we call the Energy

Affordability Program. This is the program that -- that tries to get our -- our low-income customers bills at a reasonable rate relative to their income. We are proposing to fund this more than fifty-five billion dollars in our energy affordability program in this rate case. Now, funding the program is critical. Getting our customers enrolled in it and taking advantage of the -- of the program is as important. You know, if we're funding it, that's great. If customers aren't taking advantage -- advantage of it, well, then we're not doing our jobs.

So as part of this rate case, we are proposing more resources, including more customer advocates that would help connect customers to these important programs, get more people involved, making sure that we're deploying those funds to the customers that need it most. We're also proposing to eliminate fees paid by our residential customers that use credit and debit cards. It's a relatively small amount of money, but every, you know, every dollar counts. And so we think it's important, especially for our low-income customers, that they're able to eliminate those credit card fees when they're -- when they're paying our bills. We're enhancing call

center services again for our Spanish speaking customers, trying to improve the customer experience there.

And importantly, funding economic development programs providing five million dollars in assistance to small businesses in our communities. We're also focused on infrastructure upgrades to ensure our networks are capable of -- of meeting customers' energy needs and maintaining compliance with all safety requirements. Again, that's about 70 percent of the capital we're proposing in this case. Using the tools in our -- in our tool belt, you know, particularly main replacements and leak repairs, we are, again, focusing multiple programs to eliminate leaks and reduce system emissions. We're also calibrating our capital portfolio for the state’s evolving energy policies.

So for instance, in New York City restrictions go on new service connections starting January 1st of next year. We have reduced our capital portfolio budget when it comes to capital connections to reflect those changes in the law. As policy continues to evolve in New York, we'll make those sorts of adjustments in other areas, but we

think it's important that our capital portfolio matches the direction of the state energy policy. And in this case, particularly in New York City, with changing investments. On the safety front, we are proposing to expand what we call residential methane detectors. These are devices located near customers' meters that would notify us in the event of a -- a gas leak that does two things.

First of all, it allows us to get to the scene quicker. Also allows us to deploy first responders. And -- and that helps not only with safety issues, but also helps us reduce system emissions by addressing leaks quickly when they happen. We're also proposing to enhance our training, additional safety inspections, and enhance quality control capabilities to make sure that we're doing our work correctly, safely, and -- and in compliance with all the commission safety regulations. We will be held accountable when it comes to gas safety performance. We have proposed a very rigorous set of safety performance measures in areas like main replacement, in our leak backlog, or emergency response, which measures how quickly we get to events and in our compliance with the

Commission's, again, safety regulations.

We are proposing to update rates at a time when affordability is still an imp -- an imperative, and I appreciate that. At the same time, we need to fund our business to enable investment to modernize infrastructure and -- and improve customer service. The primary drivers of our rate increase in this case include property taxes, especially here on Long Island. New initiatives, like -- like the programs I've described, depreciation, our cost of capital, including things like interest rate increases that are impacting all businesses, support for our core business, that's effectively our labor costs, and capital investments.

That is, you know, really the main drivers of these cases. So it's a combination of macroeconomic factors. Again, inflation, interest rates, issues that impact all businesses. And then -- and then issues specific to us, materials, property taxes, you know, our labor expenses. It -- it is, you know, we're doing what we can to manage our bills. And so on the one hand, yes, our costs are going up, but what are we doing to offset those costs? We're reflecting more than seventy-two

million dollars a year of efficiencies and productivity savings that -- that actually directly offset increases. Again, our affordability programs are over fifty-five million dollars a year for our low-income customers, and funding, again, seventy million dollars a year in energy efficiency to help our customers lower their bills.

I should have said in the beginning, all of these slides are on our webpage. You know, there's -- this is not something you need to study if you -- if you're interested more and want to take some time, they're all avail -- available on our website. So this slide summarizes what the typical impacts are for customers in our different service classes. The typical residential heating customer, which is a large proportion of our customer base, would see an increase of approximately 20 percent or about thirty-four dollars a month under our proposal. As I said at the beginning, our goal is not to have customers pay that increase. We would like to reach a multi-year settlement that, very importantly, allows us to smooth those bill impacts over several -- over several years.

We think that's ultimately in our

customer's best interests. You know, we appreciate that this is a large increase. We appreciate we're asking for a large number. We want to make sure we do that in the most responsible way and in our view a multi-year rate plan allows us to do that and make these bill impacts more -- more manageable over time. Very, very important. So I'll say, in conclusion, our core responsibility is to provide safe and reliable energy to millions of customers who rely on us while building the networks that will support the next generation of New Yorkers. The proposal in -- in this case will modernize our infrastructure, reduce system emissions, improve safety, enhance and improve customer service, and deliver aggressive energy efficiency in other infrastructure programs.

To achieve these priorities, it is necessary to update our delivery rates. This rate filing balances the need for continued investment with the need to maintain affordability and protect our most vulnerable customers. I want to thank you for your time this evening. I look forward to hearing your feedback. Thank you so much.

A.L.J. LEARY: Thank you, Mr. Decicco. Again, welcome everyone. I -- I had a seventh grade

teacher whose name was Sister Eleanor and she was about six feet tall and had the biggest head of any woman I've ever met. And she -- thank God there were no cell phones when she was, you know, my teacher. So please -- please turn off your cell phones and your email alerts and all of that. So it will help folks that are going to present their comments tonight. I'm going to talk to you a little bit about what's up with this proceeding, but I want to alert you, we have a Spanish language interpreter here this evening in case anyone would like to use the assistance of that gentleman. He's behind the glass, so please feel free to go over if anyone is in need of Spanish interpretation. Do you want to just state that, sir, in Espanol?

THE INTERPRETER: (Spanish interpreter speaking in Spanish.)

A.L.J. LEARY: So this hearing was noticed by the Secretary to the Public Service Commission on -- in a formal notice that has been published in newspapers and also circulated to many, many folks in the municipalities in the area. It's dated October 16th, 2023, and it's available on our Department website. There were two numbers I stated

at the beginning when I called the case, and I want you to remember those numbers in case you want further information. They're important numbers because if you go on our website, that's how -- that's your means of ingress to get information about the case. There's lots of information there, and you may want to contact Mr. Decicco or another party just to sort of -- not have to look for a needle in a haystack. They will assist you, I have no doubt.

And the company's representatives are also here to answer questions, but we're not going to do a formal question and answer session right now. But please feel free to seek out Mr. Decicco because any questions you have, he would be very happy to answer, I'm sure. You also heard his presentation, but I want to tell everyone that there are other parties in the case who may disagree or agree with various parts of the company's proposals. They're not here tonight because there's a lot of them, and it's a complicated case. But I do want you to know that this presentation was designed to give you factual information about the company's proposal. And it wasn't designed to say this is going to be perfect or any of that. It's -- it's what the

proposal is.

If I handpicked someone else in the party group, they would probably have something else different to say. So I just wanted to reassure you about that. So as some of you may know, we held virtual Public Statement Hearings back in August. We did those on the computer. Some of you, I believe, may have spoken at that time. And we of course welcome your comments tonight. This Public Statement Hearing is all about the company's proposal. And let me just discuss that for a second. On April 28th the companies filed separate proposals. One for a company I'll call KEDNY, which is Brooklyn Union Gas, and KEDLI, which is KeySpan. And that's how I will refer to them tonight.

And these proposal for KEDNY, at least, was to increase revenues by four $414 million, which represents a twenty-eight percent increase in base delivery revenues or an eleven percent increase in total revenues that would be reflected on utility bills in -- in the service territory. For KEDLI, which serves this service territory, KEDLI proposes to increase revenues by $228 million, representing a twenty-four percent increase in base delivery

revenues or a fourteen percent increase in total revenues, what again, would be reflected on your utility bill.

But the actual bill impacts, although Mr. Decicco gave you a typical residential customer, as an example, there are lots and lots of different customer classes, so it's very hard to define what those bill impacts would be. So if you own a business, your bill impacts are going to be different than if you are a residential customer. Many of you live here, and that's a different -- both of those types of customers will have different impacts.

What is the Administrative Law Judge's role? I'm doing this case with another judge. Some of you may know him. His name is James Costello. He is this evening in Staten Island with the Chief Judge.

And the three of us are responsible for compiling a complete record here. What's a complete record, a complete record of a proceeding? Well, it includes all of your comments tonight and they will be considered by the Commission, and they are a part of this record. What else is? The testimony and documents that the parties submit,

including the Company. All of this, again, can be found on our website. As many of you know already having been here, sometimes a proposal like this can result in a stipulated settlement. You know, a negotiated settlement. We call that a joint proposal. We will advise the public if that happens, and you'll be able to see, hopefully, pretty clearly what the result is.

And -- and that is a negotiated settlement. You can rest assured that there are some people in that room that are negotiating to benefit the people in this room. At least that's the assumption. But let me talk for a minute about the Commission's role. Chair Christian leads the Commission. We have six commissioners Diane Burman, David Valesky, John Howard, James Alesi, and John Maggiore. They all get together and review the record, and they will also potentially review some of our recommendations about the record, the joint proposal that settles the case, and so forth.

They are the ultimate decision maker, and their options are a few. They can accept or reject, you know, different recommendations or the settlement. They can modify it and change it. So

they have a lot of discretion going forward. Just because there's a settlement, it's not necessarily a done deal. It is second guessed frankly. And that is -- that is the process. So tonight, let me talk a little bit about how the Commission reviews, let's say, a joint proposal, a settlement, or a record in a litigated case where we go to an evidentiary hearing? The standard that they apply is pretty straightforward, but if you look behind it, it's a lot more complicated. They look to see if the company is going to be able to continue to provide safe and adequate service at just and reasonable rates. So you can see what kind of a fine line the Commission has to walk here.

So let me talk about the process this evening. I have cards that folks have filled out if they've -- if they have expressed a -- a wish to provide a public statement. If you have not filled out a card, please feel free to go back to the registration table and fill one out. We will hear you. I'll also open it up at the end. So if you hear something or you don't hear something you wanted to hear by a speaker, I will ask you, or I will offer you the opportunity at the end of all the speakers to

provide a public statement.

Even if you haven't filled out a card, our preference, of course, is to know your name and be able to spell it correctly in the record. This young woman next to me is transcribing this hearing, and that transcript will be in written form and it will be posted again in this case to the Department's website. So you'll be able to see it at some point in the not-too-distant future. So I'm going to call -- let me tell you the purpose of this hearing is to listen. We're listening to you. It's not a question-and-answer session. This isn't an evidentiary hearing. We want to hear your position on the company's proposal regardless of what that position is.

I do ask that you be respectful to the speakers when they're speaking. You know, we -- we have a real good record in Public Statement Hearings of just wonderful participants who are very respectful and -- and kind to others. If you have some lengthy statements, see if you can summarize and if you would like me to post your statement in written form, I can give them to the Secretary. Otherwise, we're not imposing any time limit, but do

be conscious that there are ten or twelve people that would like to speak and we want everybody to go home at a reasonable hour. So I will call people one by one in the order in which they registered. If you would approach the podium and please state and spell your last name.

If your first name is not something easily understandable, it may help us as well for you to spell your first name. Speak a little bit more slowly than you would otherwise speak, because it's easier for the court reporter to accurately take down your statement. That's important. This is not your only opportunity to comment. The Secretary's notice, and I have a copy or two here, if you're interested, allows you to submit something in writing by email to her. You can also go onto our website and post it. You can call on the telephone and provide a comment. There are a number of ways for you to do that. So this is not your only opportunity to comment. And all the comments received from the public are considered equally, as is the entire record, by the Commission.

So with that, let me -- any questions about the process? What did I do with my cards? Oh,

got them. I'm going to call the first speaker, but I'm then going to call the next one who I will say using a sports term or baseball term, is on deck. Okay. So our first speaker is Ryan Stanton. Ryan Stanton. And next on deck is Ryan Madden.

MR. STANTON: Should I be facing this way or that way?

A.L.J. LEARY: No, you can face that way.

MR. STANTON: All right. Good evening. I am the Executive Director of the Long Island Federation of Labor, representing over 250,000 union members and their families on Long Island. I'd like to thank the New York State Public Service Commission for its thoughtful consideration of case 23-G-0225, and case 23-G-0226. And in accordance with the rules, Stanton is spelled S-T-A-N-T-O-N. On behalf of our members, who represent a significant swath of National Grid’s rate payers, and the thousands of members and their families who work for the utility companies and their contractors, we are due to approve the rate case. The union movement has played an active role in advancing the CLCPA.

We're working people who, by virtue of

living on Long Island, are on the front lines of climate change and dealing with the impacts of this generational crisis. The main replacement program, which is supported by the rate increase, is consistent with New York State's state emission of reducing carbon emissions. These are necessary investments to bridge our region into the future as New York State begins to bring green energy assets online. We know that through sound common sense investments and main replacement, we're achieving a more environmentally friendly energy infrastructure and preparing it to service hard to electrify industries for the future. Old steel pipes leak over time. By replacing damaged infrastructure that in some cases has begun to leak with modern high-density plastic, we're ensuring that rate payers throughout the region continue to receive safe, reliable service.

National Grid will play a part in a more energy efficient grid, and we can make investments today that will only become more expensive tomorrow. I believe it was stated the standard by which these things are considered are safe and adequate service at just and reasonable

rates. This rate case not only ensures public safety and quality reliable service for rate payers that supports career opportunities for working families in our communities. We've seen a lack of funding and underfunding of critical infrastructure, particularly wastewater infrastructure put our environment at risk, don't let politics continue to seep into the discussion of society's utilities and get in the way of good public policy.

We can't afford to underfund our utility infrastructure. It results in our neighbors losing their jobs, whether it's those who maintain the system, or our brothers and sisters who execute capital improvements to ensure community safety. We know the New York State Public Service Commission has worked carefully to put forward a new vision for electric generation, transmission, and consumption based on the realities of climate change and effort to continue to support good jobs and stable communities. We must continue to maintain our existing infrastructure. If we choose to ignore necessary upgrades now, we're going to pay later. Community safety and the welfare of our communities, our members included, is our top priority. We urge

you to stand up for working families and approve the rate case.

A.L.J. LEARY: Thank you. Ryan Madden and James Stephens, you're on deck. Whatever your preference is.

MR. MADDEN: Yeah. I figured I'm supposed to be saying this to you also.

THE REPORTER: Just so everyone knows, there's a small microphone. It's for me. So if you come stand on this side, the mic should be facing you. If you're going to be on that side, it should be facing this way.

MR. MADDEN: Am I good to go?

A.L.J. LEARY: Thank you. Sorry.

MR. MADDEN: No, no, no. Please. My name is Ryan Madden. I'm the Climate & Energy Campaigns Director for the Long Island Progressive Coalition. The Public Service Commission, under the leadership of Governor Hochul, must block National Grid's 2023 proposal to raise our gas bills. Specifically reject any rate hikes for National Grid's frack gas infrastructure. We should phase out this outdated technology that harms our environment and fuels the climate crisis. Reject funding for

National Grid's leak prone pipe programs unless it's an emergency. We need to transition to energy efficiency and move away from gas systems to protect our communities. Invest State and Federal funds in the development of thermal energy networks and energy efficiency initiatives, including retrofit and electrification readiness programs for low-income New Yorkers.

If National Grid has their way, we will see roughly thirty-five dollars in bill hikes for Long Island customers every month during an ongoing affordability crisis in the region. There's no assurance this full cost will not be borne. It's unconscionable at this state in the climate crisis and the progression of implementing New York's climate law that would further invest in gas infrastructure, especially proposed by National Grid, who has dedicated itself to undermining the Climate Leadership and Community Protection Act by spreading disinformation and false solutions through the front group New Yorkers for Affordable Energy.

For example, while majority of New Yorkers supported complying with the Climate Act by phasing fossil fuels out of new construction,

National Gr -- Grid pushed deceitful ads and robocalls through the New Yorkers for -- New Yorkers for Affordable Energy to try to stop the All-Electric Buildings Act recommended by the Climate Action Council, while also lobbying against bills that would alleviate New Yorker's utility debt. National Grid is also proposing dangerous Hydrogen Heating Project in Hempstead, a state and federally recognized disadvantaged community, despite research showing that these projects would increase consumer costs, exacerbate air pollution, and cause safety risks while minimally reducing greenhouse gas emissions.

Unless we forget, after New York State rejected the Williams Pipeline, National Grid manufactured a gas crisis and started refusing to hook up new gas customers citing a shortage. They were eventually sued and had to pay thirty-six million dollars. We cannot take National Grid's word for it, that they need our money for these investments. As I said before, the Public Service Commission, under the leadership of Governor Hochul, must block National Grid's 2023 proposal to raise our gas bills and further our reliance on outdated polluting infrastructure. Thank you.

A.L.J. LEARY: Thank you. James Stephens and Dennis Feeney, you're on deck.

MR. STEPHENS: My name is Mr. Stephens, and I'm actually located in Suffolk County, but as long as she's taking notes, I can be located because I'm sure after what I say, that somebody's going to want to contact me at Rothman Evans, 2829 Merrick Road, Suite 107, Bellmore, New York 117 -- 11710. I'm going to start by giving you a little history, and I'm sorry it's going to sound a little bit like a complaint session, but I'm representing here. My rule number six is leaders take care of the rules of others first before they take care of their home. There are thousands of military persons like myself in the same position I'm in. Three and a half months ago they turned off my electricity on September 11th, actually. It -- it -- I -- I -- I'm a little bit disorganized, so please bear with me.

So part of the problem, or a big part of the problem, was prior to this, I used to pay or estimate my electric bills three months in advance of what they were, mostly because of my frequent traveling to different medical facilities, Cleveland Clinic, Northport and whatever throughout the United

States for reconstructive surgery, this, that, and the other thing. I happen to be a veteran of four -- well, it doesn't really matter how many wars. So prior to -- prior to that it's in -- it's important to mention that my total usage is between ten and twelve kilowatt hours a day, which I'm sure these gentlemen out here who do the work know that's about zero. It's hardly anything. They ran up the bills, and then during COVID, they had a ten thousand dollar relief that they were supposed to provide, which they did not.

Then there was a twenty-five-hundred-dollar relief, which they were supposed to reply to them, which they only re -- replied to one of them. And so part -- a -- a big part of the problem, and I'm just not going to mention just what the problems are as far as the billing is concerned, but the PSE&G in their billing, and let's be fair, let's be truthful here. PSE&G is owned by the State of New York. Everything here is controlled and run by the State of New York. It sounds nice and fancy, but Public Service Commission and Public Service Electric & Gas, I mean, you don't -- you can do the math.

On the billing, oh, so what happened

was I was in Cleveland Clinic. Without any notice, I came back and they -- although the bills had said, you know, final notice, whatever, I had made a 127 phone calls, which are documented to -- to PSE&G. Most of them, I was on the phone 45 minutes or more with -- waiting for a customer service per -- a person. And then when I got a public -- a person on the phone, they -- there was a lot of double talk and a lot of nonsense. I -- the town attorney from the Town of Babylon came to my house when he found out I had no electricity for three months. And for those who think that they're smart and want to open their mouth, because I've heard this before, I take it, I have no hot water. I take my showers once every two weeks when I visit Northport.

I -- I -- I -- as far as heating concerned, I don't have any heat at the current time and et cetera, et cetera. I can justify everybody who thinks that, how can this guy live three months without electricity? Quite frankly, I spent three months in a communist prison in Kalamata, Greece and 14 months as an involuntary guest of the Iranian government. I can do a lot of things a lot of people can't do. The reason I'm -- I'm -- I'm coming into

this is part of the problems and the difficulties are the inconsistencies of the billing of PSE&G and how they bill. And before I get to anything else, these guys who do the work, the linemen and whatever, they work their pants off, my problem is not with them.

They probably deserve a cost-of-living increase, et cetera, across the board. But when a guy comes to turn off my electricity in the middle of the night and -- during the day, and there's one guy up in the pole, turn it off, and there's four guys standing around watching him, that's a lot of waste of money. And that money's coming out of our rate payers' pockets. So what happened was I went to Cleveland Clinic for reconstruction surgery. There was no notice whatsoever on the door. I came back in the middle of the night because I had to take the train, and -- and got home at two o'clock in the morning. I go in the house, there's no notice on the door. There's no nothing. They turned off the electricity and I fell down the stairs and spent an additional two months in the hospital.

I should sue PSE&G for -- for neg -- negligence of -- of the -- of the workers, for -- for not properly -- and then a guy comes to the house

with a green card, and he says, I'm, you know, here to -- to talk. And -- and I asked him for his name and he says, I don't have to tell you what my name is. I asked for his little ID badge and he didn't give it. He just hands me this card with his first name on it. The bottom line is that there's a lot of ground roots stuff that goes on with PSE&G as it did with LIPA, as it did originally with LILCO, et cetera, et cetera. And I've been around a while. So I -- I -- all the -- all the whatever.

The -- as far as the billing is concerned, you can get a bill for -- there -- there's a two -- two-month -- originally there was a two-month billing every two-month period of time. And PSE&G is not stupid. This is not their first rodeo. They do that, in my personal opinion, because one month you could get two hundred and eighty-three kilowatt hours at one rate which was eight or nine cents a -- a -- a kilowatt hour, and then the next month for the same amount of days in that month, because they used to do two months, so they could adjust it, in my personal opinion, or the computer can figure out what it was. The next month, you'd get only a hundred and seven kilowatt hours at -- at

eight cents.

And before that you could get three hundred and sixty kilowatt hours at -- at -- at five cents or -- or point zero five. The -- the inconsistency in the billing is -- is -- is off the charts, and I'm probably not explaining it appropriately. But you also get double billing. You get billing for delivery and system charges, which is one rate, and then a power supply charge, which is another rate, which is ridiculous. If any kind of business today was doing business the way PSE&G was doing it, they would fire you and go somewhere else. Unfortunately, it's a monopoly and you don't have another choice of where you're going to go. As far as the increase in rates is concerned, the PSE&G is getting a lot of free rates at six cents a kilowatt hour from those people who have solar panels, whatever. And it sold -- sell back to -- to -- as -- as I understand it.

Now, I may be wrong about all of this, but this is the way it appears to John Sullivan, so to speak, of the Common Street. So when I get -- when I -- when I use -- when I use a -- a hundred and twenty -- a hundred and twenty-seven kilowatt hours

in one month in April, and then I use a hundred and twenty-seven kilowatt hours in one month in July, and I get a bill that's two different rates. I got a lot of question marks and my hair starts to stand up on end.

A.L.J. LEARY: Excuse me, Mr. Stephens. Is -- is PSE&G your provider, your utility provider?

MR. STEPHENS: They -- they were until they shut off the electric.

A.L.J. LEARY: Okay. I'm sorry. Yes. So the company here, I'm trying to think how I can best serve you because we have a -- a lot of other speakers --

MR. STEPHENS: Right. Okay. So I'm going to -- I'm going to --

A.L.J. LEARY: -- hold on. Hold on.

MR. STEPHENS: -- I'm going to tell you -- I'm going to make some recommendations.

A.L.J. LEARY: Okay.

MR. STEPHENS: The -- the billing -- the billing from PSE&G, in order to save money, and I think they can make a lot more money. First of all --.

A.L.J. LEARY: Mr. Stephens, I want to serve you. This is not the company that we have here, but I have the perfect person and I should have introduced Director Berkley before this point in time. I apologize.

MR. STEPHENS: Oh, you're saying that -- I must have misunderstood. You're saying that this meeting is more about -- more than just PSE&G?

MR. BERKLEY: It's only about National Grid.

A.L.J. LEARY: It's only about National Grid, but --

MR. BERKLEY: Let's go outside and I'll see if I can help you.

A.L.J. LEARY: -- Mr. Berkley is the perfect person.

MR. STEPHENS: In that case, I apologize. I'm sorry, I wasted everybody's time.

A.L.J. LEARY: No, listen. Thank you for your service.

MR. BERKLEY: It's not a waste to hear about a problem that someone is having.

A.L.J. LEARY: Okay. I think Dennis Feeney is my next speaker. Hi, Mr. Feeney. And

George Povall is on deck.

MR. FEENEY: Good evening. My name is Dennis Feeney. That's spelled F-E-E-N-E-Y.

A.L.J. LEARY: Bring that big mic a little bit closer to you. Because I -- I think some -- I heard somebody say, speak up.

MR. FEENEY: All right. I'll start over.

A.L.J. LEARY: Okay.

MR. FEENEY: Good evening. My name is Dennis Feeney. That's spelled F-E-E-N-E-Y. Before I begin my comments, I would like to say thank you to the New York State Public Service Commission for holding this forum and allowing the public the opportunity to offer their opinions on the proposed National Grid rate increase. My opinion will be offered from two perspectives. First, as a lifelong Nassau County resident homeowner and rate payer, and secondly, as a thirty-five-year member of Laborers Union, Local 1298. As Nassau County residents, we are accustomed to having excellent quality utility services, such as electric, gas, water, sewer, and communications. However, quality services don't come at a cheap rate, and most of us don't mind paying for

such services as long as they're maintained and operated in a manner that consistently shows improvement in both their services and infrastructure.

National Grid is no exception to this. National Grid took over the reins of a very antiquated and long neglected energy system. With that being said, drive around Long Island on any given day, and you can see the improvements being made firsthand to the electrical and gas systems. Taller, stronger poles are being installed, trees are being trimmed back, so to storm proof them and not interfered with service and gas mains that are old and nearing the end of their lifespan are being replaced and/or retired, reducing both leaks and the potential for adverse environmental impact. The investment in the infrastructure is clearly there. As a rate payer, I'm very pleased to see all this going on.

National Grid has also committed to, as a part of this proposed rate increase, to expand their partnerships within the community by hiring more people to help with weatherization for both homes and businesses in order for these consumers to

reduce their energy usage. In addition to this, more help will be provided with bill assistance for lower income households and many other items within all communities that are too numerous to list here. Whether you support it or oppose it, the world or nation and New York State are all turning towards the use of renewable energy, which includes wind, solar, RNG, and hydrogen. A large portion of the proposed rate increase can be attributed to both Federal and State mandates associated with the transition to these forms of energy and for safety updates to the current operating system.

Additionally, as this trans -- as this transition begins, there will be cost to educate and inform the public on how these systems will operate. As was mentioned in my introduction, I'm a proud thirty-five-year member of Laborers Union Local 1298 based in Hempstead, New York. Many of our members, some of which are in attendance here this evening, some of which may be your family, friends, or neighbors, are in line to benefit from building these new renewable energy projects, as well as thousands of other Long Islanders in the construction industry. A large portion of the price tag for these projects

will be paid with money from the proposed rate increase.

Large scale infrastructure projects, whether they are in the transportation sector or energy sector, have long been proven to be some of the best economic engines for our region. As this new form of energy becomes the standard, it will help create thousands of new well-paying permanent jobs for this new industry. So in closing, I see this proposed rate increase as an investment in our future. Our systems will operate safer and more efficiently. We are safeguarding our environment and future of our island. We will enjoy cleaner air, safer energy sources, and will reduce our overall impact on the planet. Thank you for your time this evening and allowing me the opportunity to voice my opinion.

A.L.J. LEARY: Thank you. George Povall and James Munz on deck. Hi.

MR. POVALL: Hi. Thank you, Your Honor. And thank you all for -- for allowing us the opportunity to speak tonight. My name is George Povall. I'm the Executive Director of All Our Energy. That is P-O-V-A-L-L. All Our Energy is a

Long Island based nonprofit and our mission is to involve the public in the transition to renewable energy and to stop pollution. We are part of the rate case and we have some things that we would like to say about not just the proposal but we do have some comments about the process too. So one of the things that we continue to see happening is the Company is telling us that they're making investments in certain things and they're making it sound like this really high increase of thirty four dollars is just like a one-time thing. We have to bring things up to date.

But really, according to the Building Decarbonization Coalition, to fix all the leak prone pipes in New York State is going to cost somewhere around sixty-thousand dollars per rate paying customer. When you look ahead at that, we're talking about this increase, if it's this is it, well then, we'll be up to date, but it's not. This is a tiny down payment on what it will require to fix the antiquated and out of date gas system that we have in New York. And I just want to give a great shout out to our union members who have done a fantastic job of keeping it going, but it's reaching the end of its

useful life. And when we have these rate proceedings, we should be talking about a bigger picture than just what National Grid wants today.

We need to be talking about what it's going to cost overall in the future to have, quote unquote, safe and reliable energy for people because this is not the end of the rate increases. This is also why New York State needs the New York Heat Act. The New York Heat Act -- Heat Act will end the current subsidies for new gas customer hookups, which range anywhere in our district from six, but closer to fourteen thousand dollars per new customer hooked up, when, for a similar amount of money, those customers could be switched to an air source heat pump. And the company is not just completely avoiding and ignoring but in the one case where they are reluctantly doing a thermal energy network that can be used on a infrastructure level for a neighborhood they're purposely botching it, right?

And this is the future. This is your future jobs. Your future jobs are putting geothermal in the street that every house can hook up to. That's -- that's the pipelines that we need and we're going to have because we have to end our use of gas.

Gas and the side effects for methane are exploding climate change. We keep hearing it every day and we're here ignoring it as if we have some kind of option not to move to the future. And every day we are being undermined from moving to that future. So a few other things I'd like to just say. We've also heard some characterization of this rate increase being due to all of the great work that's being done with efficiency programs. And other things that are really deflecting.

Because these are a tiny, tiny number. We heard a hundred and fifty million dollars. We heard about fif -- I think only fifteen million dollars, and we got a hundred and fifty thousand customers onto demand response. But we're hearing about metrics that have been missed for years, and even the metrics that we’re being told today are not up to the standards that they were supposed to be. And this is foot dragging from National Grid. I have a lot more to say. We'll end up in our other comments. But what I just want to wrap this up by saying a few things about the process. As a party to this rate case, I have been appalled at the level of running of the entire show is being done almost

seemingly almost exclusively by National Grid.

DPS pops their head up every so often to ask a few questions, but I mean, in general, we are not regulating anybody. We are being regulated, and this is absolutely unacceptable. So we do a lot of other things besides try to stop fossil fuels and try to get people into renewable energy. And I would like to just say this to the DPS and to Governor Hochul, reject this entire thirty-four-dollar subsidy proposal as she just did. The four dollar Offshore Wind rate increase that was so stupendous that it blew her mind that -- that she actually put her finger on the scale at DPS as, as her press release said to -- to stop it.

And I don't see her presence here over something that is almost ten times that cost. And like I said, it's just the down payment. It's not something that's going to -- to last for a long time. So I'm going to leave the rest to my written comments and to all our energy's written comments. And I thank you for your time. We need to move to the future for our union members, for our climate, for our communities, and for our residents and rate payers. And we need to do it now. Thank you.

A.L.J. LEARY: Thank you. James Munz and -- hi, come on up.

MR. MUNZ: Going the other way.

A.L.J. LEARY: Okay.

MR. MUNZ: M-U-N-Z.

A.L.J. LEARY: Pardon me.

MR. MUNZ: Munz. Jim.

A.L.J. LEARY: Thank you.

MR. MUNZ: You're welcome.

A.L.J. LEARY: Monique Fitzgerald, you're on deck.

MR. MUNZ: Nice meeting you. Welcome. I just have a -- first of all, you guys, I've been living in Long Island so long, I never lived any place else but Long Island. Greatest place to live. We love it. We have great beaches. We've always had -- I remember when you were Brooklyn Union Gas, you were great then, the Metro Center and all the good stuff that you guys did. Tremendous. There's no questions. We can't say how good you are, could we? No, we couldn't. Anyway, I just I don't know where gas is going to go. But when you did it in my neighborhood, we used to have a, just a small line with three or four BTUs and it was functional for 60

years, and then you had to come in and you put in a 60-pound pressure unit in with your yellow plastic, and you had Banneker do it in our neighborhood.

And I'd just like to say that Banneker did a tremendous job. They -- from the very time they were there, they were nice people. They did what they had to do and they were very conscious of people they worked with. And, you know, the neighbors and everybody else. When they finished, they put the asphalt down, the first layer, the hard layer, and then they put the smooth coat over the top. Then I went to Oceanside and Oceanside had (unintelligible) do it. And you know, the difference is night and day. And what I'm really just saying is nine X -- National Grid does a great job. Banneker does a great job. I hope we never use them again. I'm sorry guys. If there's a couple of guys back there, I'm sorry. But this is the fact of life.

They did an electric job on our block. They put in a one-billion-dollar cable that went from the electric grid over in Island Park over to my -- my neighbor in East Rockaway and it took them three years. They said it was going to take less than a year. My neighbor's tree was frozen to death because

they had to fray -- freeze the coefficient, the -- the dielectric and a tree froze. It was just a -- it was a frozen tree for three years. But anyway, and that was only supposed to take a year, and it was a hundred and forty-seven megawatts. So I would just like to say, if, you know, things being done, I hope you're going to use Banneker. And on the other thing that National Grid, you know, I hope that this thing works out.

But I will say one thing, everything worked very well on -- on the stuff that you did before at my house. So congratulations. Hope you keep working and hope you keep gas, because as my neighbor said, she's out in Farmingdale, it's thirty-six hundred dollars to keep a temperature at 64 with oil and gas I'm eighteen hundred and I'm not complaining.

A.L.J. LEARY: Thank you. Monique Fitzgerald and Fred Harrison, you're on deck.

MS. FITZGERALD: All right. So can you hear me?

A.L.J. LEARY: Yes.

MS. FITZGERALD: All right. Good evening, everyone. I am here with my Suffolk Workers

Benefit Council hat on today. So these are the sentiments from them and myself. Just a bit about the Suffolk Workers Benefit Council. It's an all-volunteer worker centered membership association of farm workers and other low paid workers in Suffolk County. And the message pretty much is simple. I don't want to hold us up all night with a lot of commentary, but I do want to just make a couple of points and just give a -- a brief depiction of my story and why I needed to come today. So the Public Service Commission, you all are mandated to protect us from utility monopolies. We need for you, the Public Service Commission, to protect the most vulnerable people, the customers of National Grid, who are the lowest paid workers, the people who are struggling to keep their heat going in the wintertime.

This time of year always brings a lot of anxiety to people who are struggling to pay rent and their utility to keep their heat going. So I just want you all to be mindful of this occurrence in everyone's lives that is dealing with these rate hikes in a very real way. It's not a matter of -- it's not incidental. It is a matter of life and

death in many cases. As a person who has had their heat cut off growing up, it is not an -- it's not an easy task to know -- go home knowing that you're not going to be heated in the wintertime. So this also could lead to deaths and people freezing in their homes. So we don't want to make our homes ice boxes. We don't want to leave the most vulnerable, highly exposed to National Grid's inability to provide the service without raising rates that are already too high.

So the people on Long Island who are the most vulnerable, who are they? Right? The Climate Justice Working Group designated certain people in areas called disadvantaged communities. They identified markers like low income, and these are the people that we believe the Public Service Commission needs to protect. And living in a disadvantaged community speaking about -- speaking for the workers in the Suffolk Workers Benefit Council, we are all living in disadvantaged communities across Long Island. So we are asking, and we are imploring that you do not raise these rates. Think about the people who are struggling the most when you have to deliberate.

Who are the people that are most vulnerable? It's fifty-five thousand Long Islanders that are more than sixty days late behind on their gas bills and at risk right now for a shutoff from National Grid. Who are the most vulnerable? More than a hundred thousand residents report not having enough money to buy food. So again, these are life and death situations that people are dealing with, whether they are going to pay their rent, buy food, and pay their utility bills. And what is the opposite that's going on? The opposite is we see National Grid made five point nine nine seven billion dollars in profits in one year. What's the opposite? National Grid paid their CEO eight million dollars last year. This is the opposite effect. National Grid is able to do this while people are trying to stay warm.

And just a little bit about the decisions people are having to make. I'll just tell you a little bit about the decisions that my family has had to make recently. In the last two years, my son, my brother, his daughters, their children, my aunt, her daughter, her children, their children have left or are planning to leave in the next few months,

and that is devastating. And why are they leaving? People are leaving Long Island because they can't afford rent, they can't afford food, and they can't afford their utility bill. So I am speaking for them, I'm speaking for myself, someone who has a National Grid bill in collections that is on their credit report, somebody who is struggling to pay this bill as we speak.

So this is very real. This is very present for me and my family. So again, I just ask that you -- I implore that you reject this rate hike. Think about the people who are facing shutoffs and stop shutoffs and late fees, protect and serve -- and serve the most vulnerable rate payers. Thank you.

A.L.J. LEARY: Thank you. Fred Harrison, Kevin Sabatino on deck.

MR. HARRISON: Before I start, I just hope that everybody takes heart to those comments that were just made. They were very important and should have a big influence on the Commission. My name is Fred Harrison. I live in Merrick. I'm a retired teacher, teacher union leader. I work and volunteer with Food & Water Watch, and I use natural gas and National Grid to heat my hot water and heat

in my home. I'm here today to ask the Commission to set aside business as usual. In a year which may very well be the hottest on record, it should no longer be acceptable to the Commission that rate payers pay more to the very company whose products do so much damage.

It is unreasonable and unfair to ask rate payers to reward a company that promoted a product that they knew would damage the environment. National Grid and their predecessors created a situation which we could have avoided. Long Island, and I've lived here since 1949, was not gas land. At the very time fossil gas was heavily marketed to Long Islanders, fossil fuel company scientists were reporting on the dangers of climate change. They pushed fossil gas on Long Island at the very time we should have been shifting to solar and renewables. The lies that the fossil fuel companies told us are now public knowledge and are the basis for more than forty climate suits across the country.

This bad behavior must have consequences. It is no longer sufficient to engage in a ballet in which National Grid asks for a lot, gets less, but in the end always ends up with more

rate payer money. Ending this dance is doubly important now that it has become obvious, and I hope it's obvious to the PSC, that meeting the worthy goals of the CLCPA will be very expensive. Rate payers cannot sustain a vigorous build out of renewables, while at the same time providing evermore money to National Grid. National Grid should be winding down as a gas company, either voluntarily in recognition of the damage their products have done or through PSC regulation.

We urge the PSC to take three concrete steps. Firstly, a reduction in Nat Grid’s rate of return. To continue to reward National Grid with a totally unreasonable rate of return is an affront to every rate payer. What might be a fair rate of return? Our very solid, reasonable, and clear-thinking New York State Controller thinks 5.9 percent is a fair rate of return. That's the benchmark he has established for the New York State Retirement Fund, which I imagine most of the PSC staff are part of.

Secondly, programs for low and moderate-income households are great and necessary. We need more of them and they need to go further. We

need cost reductions for all rate payers. The PSC can begin shifting the cost of existing programs to National Grid shareholders. The fossil fuel companies participated in what eight state attorneys general have called fraud. Their ill-gotten gains have come out of the pockets of rate payers. Unfortunately, they have met not made restitution on their own. And just as parents must sometimes do, the PSC needs to guide National Grid behavior and direct them to do the right thing.

Thirdly, the PSC must exercise strict scrutiny over every National Grid request for infrastructure spending. Rate payers can't continue to pay investments in the gas system while financing through rising LIPA rates the expansion of the electrical system. Every National Grid project should be carefully and publicly evaluated for alternatives and how well it complies with the goals of the CLCPA. We know in the end Long Island will be getting off fossil fuels. As Governor Hochul has pointed out, offshore wind, solar, heat pumps, EVs and electrification are the future. The transition needs to be affordable, sensible, and well planned. And the PSC should be leading the way protecting rate

payers from any and all unnecessary and unfair expenditures. And I thank you.

A.L.J. LEARY: Thank you. Kevin Sabatino.

MR. K. SABATINO: Hey, how are you?

A.L.J. LEARY: Are you related? Are you related?

MR. K. SABATINO: With who? With Frank?

A.L.J. LEARY: Yes.

MR. K. SABATINO: Yeah.

A.L.J. LEARY: Okay.

MR. K. SABATINO: Yeah. Yeah. That's Sabatino. S-A-B-A-T-I-N-O. I'm a union worker. I'm a welder, but I definitely disagree with this a hundred percent. The pay increase on residents. Absolutely not. I don't want this. I don't want you guys doing it. If you need to get the money, get it from the Federal government, not your common homeowner. Okay. Enough people are struggling. The unions could figure it out. The unions could press back with the Federal government. That's why they pay into the pack. They could figure that out in especially the Union delegates work hand in glove

with the politicians. They could definitely work something out with the Federal government.

If they're issuing out massive checks to Israel and Ukraine, I'm sure they can come up with the funds instead of pressing the common person. I'm worried about what the Department of Public Service is actually going to do, because I reached out to you guys probably about a year ago, actually recently about smart meters. And you guys kind of failed. You failed on that. I pressed on the issue with the opt-out fee and explaining to you how smart meters violate the Fourth Amendment. And LIPA keeps ignoring, especially PSEG and the Department of Public Services ignores everything I say about smart meters. I'm bringing it up because now I see you guys face-to-face. So I want to make it really clear. You guys have to do your due diligence.

When it comes to the smart meters. you -- you have to understand that it's violating people's Fourth Amendment. It's violating the Fourth Amendment. Because what smart meters do is that they forensically audit what people do inside their dwellings. They're searching, unwarranted searches. So I got to bring that to your attention to face

value. Finally, I get to see you face value. So now you know.

A.L.J. LEARY: Thank you. Frank.

MR. F. SABATINO: Yes.

A.L.J. LEARY: Sabatino.

MR. F. SABATINO: Yes. Hi.

A.L.J. LEARY: Thank you.

MR. F. SABATINO: I'm -- I'm a homeowner -- homeowner as well. And when I found out about this thirty-dollar rate increase on my National Grid bill, I was alarmed. This affects everyone that's Nassau County -- a Nassau County homeowner, maybe I guess Suffolk County as well. Not everyone has an endless supply of money or -- or an income that could keep sustaining, paying all of these bills. I -- I -- there was a time when I was proud to be a homeowner living in Nassau County. I am starting to regret it. I -- I just see my -- my school tax bill increasing, my general tax bill, which is supposed to come out soon. I'm dreading that.

I see that we're building a new precinct in Woodbury at twenty-one million dollars, like sky in the pie. Money's no object in this

county. It's -- it's frightening. Hochul wants things to happen and our backs are up against the wall. I feel I speak for all these empty chairs here. Not for special interests or anything, but for the ordinary homeowner who -- who if they don't perform at work, they lose their job. We just get fired. They show us the door. And I -- I struggle. You know, it's -- it's not just people of color. It's everyone. We are struggling. I pay my bills in full on time all the time.

The -- even the issue with the smart meter that's attached to people's houses, I know this is not -- not National Grid, but PCE&G. They put these smart meters. They had someone walking down the street with a -- with a -- with a wagon and installing these meters. I stopped it. My brother stopped it on his house. We're challenging that it is a Fourth Amendment violation. I don't know if the CEO is going to listen to us, but we've challenged that we're being penalized for protecting our Fourth Amendment right. We have to pay extra on our bills. Otherwise, we are in danger of -- of damaging our credit. We could end up being penalized in -- in multiple -- in a multitude of ways.

It's just become extra -- extraordinarily expensive living on Long Island. And, you know, that's why you see, when you read Forbes or Bloomberg, how they say, you know, New York is one of the top states that people are leaving. I would wish the governor, I mean, even the unions, if everyone could coordinate and work together, find the money somewhere else, lobby from the Federal government, it seems like we print money out of nowhere. You know, we -- I could tell you how insanely expensive it is just going food shopping now. Everything has gone up. It's become very hard. And -- and I'm an able-bodied person. I could imagine someone who has a disability, who -- who's -- who's impaired, who's struggling, who doesn't have an education, how much harder it is for them.

And I feel my back is up against the wall and I'm capable. And I know -- I don't know where -- where I'll be if I keep seeing these bill -- bills keep coming in. I'm going to have to sell and get out of here. And I just really hope the governor and -- and the unions and everyone else takes this into consideration. Thank you.

A.L.J. LEARY: Thank you. Mr. Silva,

or is it Ms. Silva? I can't read your first name. Oh, had to leave. Okay. Jerome Bust?

MR. BUST: Hello. Good evening, Chairman Christian, members of the Public Service Commission. My name is Jerome Bost. I'm Director of External Affairs for IBEW Local 1049. We represent about four thousand five hundred members in the gas and electric industry here in Long Island. Just wanted to thank you for being here today and our business major sends his regards for not being here directly. I'm here on behalf of our members employed with National Grid to voice support for the company as a crucial partner. For decades, our highly skilled union workplace has built to maintain the critical gas and energy infrastructure of power in Long Island and Queens.

Countless Local 1049 members work in National Grid. Their positive experience, it’s confirmed. National Grid is an outstanding corporate citizen serving our region with integrity. National Grid recognizes skilled labor as the backbone of New York's energy industry. This value provides thousands of middle-class careers. National Grid collaborates with us to ensure members can access

emerging green economy opportunities. Achieving New York's necessary clean energy goals requires massive build out and daily maintenance of infrastructure like solar farms, wind turbines, battery storage, and miles of power lines. IBEW 1049 members are on the front lines of this.

Energy transition needing expertise to improve communities statewide. Together we are eliminating methane emissions, deploying renewable solutions, and supporting workforce development, so members gain clean energy skills. Importantly, no one should have to go without gas or power because they can't afford it. National Grid has invested millions of programs supporting New Yorkers, including eighty-six million in bill credits for low-income households, seventy million annually for weatherization and efficiency to help customers use less energy and save fifty percent more efficiency savings in 2022 than previous years by launching a new weatherization and demand response program.

Over 1,500 miles of gas retired since 2013 to reduce emissions, improve safety and reliability, do increase inspections and upgrades, exceeding service metrics, and reducing customer

bills by 50 million yearly. 150 million in COVID relief to struggling customers. National Grid's leadership shows their commitment to a diverse clean energy workforce. We are exceeding -- we've seen results from these inclusive programs and follow through. As the voice of Energy workers, National Grid is a valuable corporate citizen supporting the clean energy future and skilled workforce New York needs. They have the expertise to continue investing in infrastructure and jobs to meet climate goals.

We urge providing the National Grid needs to maintain the critical role and transition. And I'm also speaking on behalf of our members where majority are actually employed with National Grid as a member myself. So thank you so much for your time.

A.L.J. LEARY: Thank you. So I'm going to open up the floor and ask if there's anyone else here that would like to provide a public statement at this hearing. Anyone? Okay. Let the record reflect that no one is seeking to provide any further public comments. I, again, Chair --.

MR. K. SABATINO: I have something to say.

A.L.J. LEARY: Come on up. Just state

your name again for the record.

MR. K. SABATINO: It's Kevin Sabatino. Yeah. I wanted to be really clear with the unions. I'm a union worker too, but they got to start doing their due diligence with the Federal government. They got screwed long time ago with the -- with the KeySpan pipeline out in the Midwest. And that was a big, massive civil works project. They -- they invested a lot of money and then it was cut off just like that. And I'm not expecting National Grid to just start strong arming our residential -- residential customers or commercial customers. If they need the money, they go to the Federal Government. Bottom line. Bottom line. Not the common homeowner. They need the money. They need the work. Then reach out to the Federal Government, press them. Press them. That's what I got to say.

A.L.J. LEARY: Thank you. Anyone else? Excellent. I -- on behalf of Chair Christian, I also, again, want to thank all of you for participating this evening. You're busy and you took time out of your busy lives to come here. And we hear you. Thank you for providing the comments. I want to also remind you that, and please pass this on

to your neighbors and family and friends, that there are other ways to comment. If someone missed this evening, please remind them that they can comment on the Department's website and we will of course consider those comments as a part of the record. We are going to close the public hearing at this point. And again, thank you all.

If you have any questions, please see Mr. Berkley, our Director of Consumer Services or me. I want to thank the Nassau County Executive and Legislative folks for having us. Thanks to our Office of Consumer Services. Thank you, Chair Christian for being here. And did I forget anyone? No. Thank you to our court reporter and we are adjourned. Off the record.

(The hearing concluded at 7:35 p.m.)

STATE OF NEW YORK

I, DANIELLE CHRISTIAN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 69, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 22nd day of November, 2023.

DANIELLE CHRISTIAN, Reporter